

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4-Economic Stability (ES)
	Part No./Name	C-Case Processing (SNAP)
	Section No./Name	C-100-SNAP Household Determination (SNAP)
	Document No./Name	C-130-SNAP Separate Households
	Effective Date	June 27, 2011

Do not certify the following people as a separate household if they live together.

- Parents and children age 21 or younger (natural, adopted, or step).

EXCEPTION: Parents and their children may apply separately if one of the parents meets the criteria in number 9 of section C-121-SNAP of [C-120-SNAP](#).

- A child (other than a natural, adopted, or stepchild) under 18 and adult household members with parental control of the child. A child is considered to be under parental control if the child is financially or otherwise dependent on an adult member of the household. The worker must make that determination.

EXCEPTIONS:

- The household may choose to consider a foster child as a boarder instead of a household member.
- Allow a child under 18 who purchases and prepares meals separately to apply separately if the child is:
 - married and living with a spouse or
 - the parent of a minor child living in the home.
- Spouses as defined in [A-110-FITAP/SNAP](#).

NOTE: Consider parents, children, and spouses, as described above, to be living together even when one person:

- is away from home for employment purposes only, has not established permanent residence elsewhere, and returns home at least one day a month.
- *
 - is away from the home temporarily for a vacation and has not established permanent residence elsewhere. **

Certify the following persons as separate households unless they fall into one of the three previous categories:

- A roomer who pays for lodging but not meals.
- A live-in attendant.

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C-131-SNAP SEPARATE HOUSEHOLD STATUS CHART

Definition of household: A person or group of persons living together who usually purchase food and prepare meals together.

Can Separate Household Status be granted?		
Circumstances		Yes / No
Parents and children living together, purchasing and preparing meals separately	Child 21 or under	No
	Child 22 or over	Yes
Child under 18 living with adults who are not their parents, and purchasing and preparing meals separately	Unmarried with no children & under parental control of adult household member	No
	Living with their minor child or married and living with their spouse	Yes
	Note: Minors who live with adults other than their parents, who are married and living with spouse or their minor child are not considered to be under the parental control of the adult household member.	
	Not under parental control of adult household member	Yes
Spouses living together purchasing and preparing meals separately (See A-110-SNAP for definition of spouse.)		No

Note: A person age 60 or over (and spouse) who resides with others, but is unable to purchase and prepare meals separately from the others because of a disability can be certified as a separate household, regardless of the fact that the person's meals are not purchased and prepared separately. The gross income of other household members cannot exceed 165% of the net income limit for the number of other people. (See [C-120-SNAP](#))

C-132-SNAP CHILDREN WHO LIVE IN MORE THAN ONE HOME

C-132-1-SNAP Joint Custody

If a child lives in more than one home because the child's parents, or the persons acting as parents, do not live together and they share joint custody, the child may be included in the SNAP household for either home. If the parents, or persons acting as parents, agree about which household will receive SNAP benefits for the child, they should be given the opportunity to make the choice concerning which case should include the child. However, if they cannot agree, the agency will make the decision. In most instances, the child will be included in the SNAP household where he lives the majority of the time.

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Example: Parents have joint custody. The child stays with his mother the majority of the time and with his father every other weekend and two weeks during the summer. The father applies for SNAP benefits. Since joint custody exists:

- If the mother does not receive SNAP benefits, the child can be included in the father's SNAP household.
- If the mother receives SNAP benefits, the child can be included in the father's SNAP household only if the child is not included in the mother's SNAP household and the mother approved the inclusion of the child in the father's SNAP household. In this situation, the mother makes the decision because the child lives with her the majority of the time.

C-132-2-SNAP Sole Custody

When joint custody does not exist and the child lives with one parent, or with a person acting as a parent, and visits periodically in the home of the other parent, he is not a member of the SNAP household of the home in which he visits.

Example: Parents do not have joint custody. The child lives with his mother and visits in his father's home every other weekend and two weeks during the summer. The father applies for SNAP benefits. The child cannot be included in his father's SNAP household since the child only visits in the father's home.